

21STCV22133 21STCV22133

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 21STCV22133 Hearing Date: September 21, 2026 Dept: 732

Elvis Tran v. Victor L. George, et al.

Monday, September 21, 2026

CASE NUMBER: 21STCV22133

OPPOSED

Plaintiff Elvis

Tran's Motion to Strike or Tax Costs. _____

Facts:

This is an action for declaratory relief between two attorneys over a common settlement fund. The Complaint alleges as follows. Defendant Victor L. Goerge, and then Plaintiff Elvis Tran, were attorneys in succession for one Briana Scott. (Complaint ¶ 3.) These representations culminated in a settlement payment to Scott, of which \$500,000 is earmarked for attorney fees. (Complaint ¶ 3.) Plaintiff seeks declaratory relief concerning the parties' respective entitlement to fees. (Complaint ¶¶ 12–13.)

Procedural

History: Plaintiff filed the

Complaint on June 14, 2021, alleging one cause of action for declaratory relief.

This matter came on for non-jury trial on May

18, 2026, and the court on June 5, 2026, ordered that the \$500,000 fund was to be apportioned 80% for Defendant (\$400,000), and 20% for Plaintiff (\$100,000).

The judgment entered on July 2, 2026 states that each party is to bear their own costs.

Defendant

filed a memorandum of costs on July 17, 2026, seeking \$116,271.52 in costs.

Plaintiff filed the present motion to tax costs on July 22, 2026.

Defendant filed an opposition on September 8, 2026.

Plaintiff filed a reply on September 11, 2026.

Discussion:

I.

MOTION TO TAX COSTS

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(4).” (California Rules of Court (“CRC”) Rule 3.1700, subd. (b)(1).)

“Code of Civil Procedure section 1032, subdivision (b) [], guarantees prevailing parties in civil litigation awards of the costs expended in the litigation: ‘Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.’” (Williams v. Chino Valley Independent Fire Dist. (“Williams”) (2015) 61 Cal.4th 97, 100.).

“If the items on a verified cost bill appear proper charges,

they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred.” (Rappenecker v. Sea-Land Service, Inc. (1979) 93 Cal.App.3d 256, 266.) Although individual cost items are ordinarily challenged by a motion to tax costs, no cost-item is effectively put in issue by “mere statements” claiming them to be unreasonable. (Ibid.) However, where “it cannot be determined from the face of the cost bill whether the items are proper,” “the mere filing of a motion to tax costs may be a ‘proper objection’ to an item.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, 132.)

Plaintiff Elvis Tran (“Plaintiff”) moves to strike or tax the memorandum of costs filed by Defendant Victor L. George (“Defendant”) seeking \$116,271.52 in costs following judgment on Plaintiff’s declaratory relief claim awarding \$400,000 to Defendant and \$100,000 to Plaintiff out of a \$500,000 settlement fund. Plaintiff argues that the judgment states expressly that each party is to bear their own costs, and further that the bulk of the costs sought in Defendant’s memorandum or non-compensable expert witness fees. (Motion at pp. 8–12.)

Plaintiff is correct that Defendant is not the prevailing party entitled to costs under Code of Civil Procedure § 1032. That statute entitles prevailing parties to their costs (Code Civ. Proc. § 1032, subd. (b), and defines prevailing party as follows:

“Prevailing party”

includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code Civ. Proc. § 1032, subd. (a)(4).)

Despite obtaining a larger share of the settlement fund, Defendant has not obtained a “net monetary recovery” within the meaning of the statute, because the recovery directed is against the fund to which the parties

had competing claims, not against Plaintiff. No party in this action sought damages against the other; Plaintiff's complaint sought a declaration of the parties' interest in the fund, which declaration he obtained. This is thus a case in which the prevailing party "shall be as determined by the court" (Code Civ. Proc. § 1032, subd. (a)(4)), which determination, as indicated in the judgment, is that neither party may be said to be the prevailing party under this statute, and thus each party is to bear their own costs.

Additionally, Plaintiff is correct that the costs memorandum is dramatically inflated with impermissible costs. \$102,004.81 of the costs sought by Defendant consists of the fees paid to expert consultant Erin Joyce, which fees are expressly prohibited under Code of Civil Procedure § 1033.5, subd. (b)(1). (See Opposition at p. 3.) Defendant offers no basis in law to seek the bulk of the costs claimed in the memorandum.

The motion is therefore GRANTED, and the memorandum of costs is stricken.

Superior Court of California

County of Los Angeles

Department 732

ELVIS TRAN.,

Plaintiff,

VICTOR L. GEORGE, et al.,

Defendants.

Case No.:

21STCV22133

Hearing Date: September 21, 2026

[TENTATIVE] RULING RE:

Plaintiff Elvis Tran's Motion to Strike or Tax
Costs

Plaintiff Elvis Tran's Motion to Strike or
Tax Costs is

GRANTED, and the memorandum of costs filed by Victor L. George is stricken.

Plaintiffs to give notice.

Dated: September 21, 2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court